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To: "Lane, Cliff (NIH/NIAID) [E]" <CLANE@niaid.nih.gov>

Subject: FW: help! H5N1 taskings mishegoss

Date: Mon, 19 Dec 2011 21:26:30 -0500

Importance: Normal

I do not want to put down in an e-mail what I think of all of this. Entirely predictable, however. We should discuss at your convenience. Please delete e-mail after you read it.

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From: Patterson, Amy (NIH/OD) [E]

Sent: Monday, December 19, 2011 8:25 PM

To: Collins, Francis (NIH/OD) [E]; Hudson, Kathy (NIH/OD) [E]; Tabak, Lawrence (NIH/OD) [E]; Fauci, Anthony (NIH/NIAID) [E]; Auchincloss, Hugh (NIH/NIAID) [E]; Burklow, John (NIH/OD) [E]

Subject: help! H5N1 taskings mishegoss

Francis,

I just had a concerning discussion with Kris Beardsley of NSS. There is considerable confusion at the EOP level about the different workstreams in play and consequently who the leads are and what the next steps are. In the confusion, issues have been conflated, and unrealistic and potentially unwise taskings and deadlines are being mandated.

By the end of the call 5 issues/workstreams had been identified and discussed, including timeframes and processes that are new to us and especially concerning. I have outlined them in the table below in terms of Issue, Time Frame, Lead agency, other players, Status/Next Steps, and Comments. Of particular note are items #2 and #3 in the table below. According to her staff, Heidi Avery (NSS) has said that within the next two weeks, not only does a USG-wide mechanism have to be developed by NIH for the "upstream" Federal review of as-yet unfunded research for its dual use potential, but that all of our funded life sciences research must be assessed for its dual use concerns and presumably plans made for managing any concerns identified. NSS staff further report that this was agreed upon in a conversation with Sally Howard (this was not my interpretation of Sally's email to you this morning in which she recounted her conversation with Heidi.)

I hope that, with your leadership, we can work out very quickly a clearer, more informed, and feasible set of directions on the tasks, timeframes, and who has the lead. In addition, I think you need to know that

tomorrow's sub-IPC meeting is focused on federal decisions about funding research that may raise dual use concerns.

Regards,
Amy

Issue/Workstream	Timeframe	Lead	Other Players	Status/Next Steps	Assumptions, Caveats, Questions, Comments
1. Develop a mechanism for secure distribution of information withheld from published H5N1 manuscripts	Immediate	NIH	- Other HHS components (CDC, OS/ASPR) - Other USG components (State, Commerce, other science agencies, security agencies)	- Comments received from CDC, OGC, and ASPR - Revisions will be finalized 12/20/11 - After HHS position developed, need to convene interagency discussion	Assumes that the journals will publish an abridged version of both manuscripts. This is not 100% certain. Has the HHS position been finalized and is NIH responsible for convening the interagency discussion? Kris and Diane DiEuliis seemed to think so.
2. Develop a formal, USG-wide "upstream" process by which science funding agencies assess the dual use potential of research being considered for funding and determine whether any conditions need to be set for those determined to be DURC (dual use research of concern). For example, should the work be conducted at all, does the work need to be classified, should there be notice of potential restrictions on communication or sharing of research materials?	Very short term (within 2 weeks)	NIH?		Sub-IPC is discussing this Tuesday, Dec 20.	Kris said that Heidi is very adamant about this and that whatever NIH decides will be a USG-wide process.
3. Assess <u>all</u> current life sciences research funded by USG agencies and identify those that may pose DUR concerns.	Very short term (within 2 weeks)	All agencies that fund life sciences research			This is simply not feasible in a 2 week period. Program staff will need to be trained about DUR and what to look for.
4. Develop a mechanism for disseminating any DURC information determined to warrant restricted communication.	Mid-term	???	- Other HHS components (CDC, OS/ASPR) - Other USG components	NSABB is currently deliberating on the attributes of what information should not be broadly disseminated and the	

Released by Chairman Rand Paul

			(State, Commerce, other science agencies, security agencies)	characteristics of a mechanism for securely sharing information that should not be published	
5. Develop a USG policy for local oversight of dual use life sciences information	Longer term	NIH/HHS	Trans-USG	Draft policy exists, being refined. Plan is to publish it in FR for public comment in early 2012.	